

		serially numbered to differentiate it from previous pleadings or amendments; and (2) state what allegations in the previous pleading are proposed to be deleted/added, if any, and where, by page, paragraph, and line number, the deleted/additional allegations are located. (Cal. Rules of Ct., Rule 3.1324(a).) The motion must also be supported by a declaration that specifies: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Ct., Rule 3.1324(b).) Here, Plaintiff complied with the procedural requirements of Rule 3.1324. (<i>See</i> Silverthorne Decl., Ex. C; Not. at pp. 2-5.) The court finds the proposed SAC will promote resolution of the full dispute between the proper parties. No later than 10 court days after the hearing, Plaintiff shall file the Proposed SAC, which is attached as Exhibit C to the Silverthorne Declaration. The court continues the Case Management Conference to December 1, 2026, at 9:00 a.m. in this Department. Moving party is ordered to give notice.
11	Becker vs. The Blow Down, LLC	TENTATIVE RULING: For the reasons set forth below, Defendant The Blow Down, LLC’s Motion for Summary Judgment, or in the Alternative Partial Summary Judgment and Summary Adjudication on the Issue of Punitive Damages is DENIED. <u>Statement of Law</u> “The purpose of the law of summary judgment is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 843; accord, <i>Carver v. Volkswagen Group of America, Inc.</i> (2024) 107 Cal.App.5th 864, 876.) “A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code Civ. Proc., § 437c, subd. (a)(1).) “The motion for summary judgment shall be granted if

	all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact.” (Code Civ. Proc., § 437c, subd. (c); <i>Carver v. Volkswagen Group of America, Inc.</i> (2024) 107 Cal.App.5th 864, 876.) “[T]he summary judgment statute, Code of Civil Procedure section 437c, ‘provides a particularly suitable means to test the sufficiency of the plaintiff’s prima facie case and/or of the defendant’s [defense].’ [Citation.]” (<i>Stokes v. Forty Niners Stadium Management Co., LLC</i> (2024) 107 Cal.App.5th 1199, 1213.) “A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1); <i>R.J. Land & Associates Construction Co. v. Kiewit-Shea</i> (1999) 69 Cal.App.4th 416, 424.) “A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment.” (Code Civ. Proc., § 437c, subd. (f)(2).) “If a motion for summary adjudication is granted, at the trial of the action, the cause or causes of action within the action, affirmative defense or defenses, claim for damages, or issue or issues of duty as to the motion that has been granted shall be deemed to be established and the action shall proceed as to the cause or causes of action, affirmative defense or defenses, claim for damages, or issue or issues of duty remaining.” (Code Civ. Proc., § 437c, subd. (n)(1).)
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	“A defendant or cross-defendant has met that party's burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) “First, and generally, from commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850; accord, <i>Stokes v. Forty Niners Stadium Management Co., LLC</i> (2024) 107 Cal.App.5th 1199, 1213-1214.) “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) “Second, and generally, the party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850; accord, <i>Carver v. Volkswagen Group of America, Inc.</i> (2024) 107 Cal.App.5th 864, 876-877; accord, <i>Stokes v. Forty Niners Stadium Management Co., LLC</i> (2024) 107 Cal.App.5th 1199, 1214; Code Civ. Proc., § 437c, subd. (p)(1) [plaintiff meets its burden by proving each element of its cause of action].) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 851.) Unless the moving party meets its initial burden, summary judgment cannot be ordered, even if the opposing party has not responded sufficiently, or at all. (<i>Vesely v. Sager</i> (1971) 5 Cal.3d 153, 169-170, superseded by statute on another point, as noted in <i>Ennabe v. Manosa</i>
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(2014) 58 Cal.4th 697, 701, 707; *FSR Brokerage, Inc. v. Superior Court* (1995) 35 Cal.App.4th 69, 73, fn. 4.)

The moving party's evidence is strictly construed, while the opposing party's evidence is liberally construed, and any doubts as to whether summary judgment should be granted must be resolved in favor of the opposing party. (*Johnson v. American Standard, Inc.* (2008) 43 Cal.4th 56, 64; accord, *Stokes v. Forty Niners Stadium Management Co., LLC* (2024) 107 Cal.App.5th 1199, 1214; accord, *Atkins v. St. Cecilia Catholic School* (2023) 90 Cal.App.5th 1328, 1344-1345; *Trop v. Sony Pictures Entertainment, Inc.* (2005) 129 Cal.App.4th 1133, 1143.)

"The court focuses on finding issues of fact; it does not resolve them. The court seeks to find contradictions in the evidence or inferences reasonably deducible from the evidence that raise a triable issue of material fact. [Citation.]" (*Trop v. Sony Pictures Entertainment, Inc.* (2005) 129 Cal.App.4th 1133, 1143-1144.)

"Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. [Citations.]" (*Weiss v. People ex rel. Department of Transportation* (2020) 9 Cal.5th 840, 864.) "When evaluating the record of a summary judgment motion, the trial court must consider all inferences reasonably deducible from the evidence in the opposing party's favor. [Citations.] The court may not weigh the plaintiff's evidence or inferences against the defendants' as though it were sitting as the trier of fact. The court nevertheless must determine what the evidence or inference could imply to a *reasonable* trier of fact. [Citation.]" (*Gall v. Smith & Nephew, Inc.* (2021) 71 Cal.App.5th 117, 123.)

The Court Denies the MSJ Due to Insufficient Notice

"Notice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing. If the notice is served by mail, the required 81-day period of notice shall be increased by 5 days if the place of address is within the State of California, 10 days if the place of address is outside the State of California but within the United States, and 20 days if the place of address is outside the United States. If the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 81-day period of notice shall be increased by two court days." (Code Civ. Proc., § 437c, subd. (a)(1).)

“The importance of providing the minimum statutory notice of a summary judgment hearing cannot be overemphasized.” (*Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1262.) The purpose of subdivision (a)’s deadline “is to allow the parties time to prepare their opposition and replies and to prepare for the hearing.” (*Lackner v. North* (2006) 135 Cal.App.4th 1188, 1208.)

Where a motion for summary judgment was not filed within the deadline of section 437c, subdivision (a), the motion “was untimely under the relevant statute, and the trial court properly disregarded it as untimely.” (*Cuff v. Grossmont Union High School Dist.* (2013) 221 Cal.App.4th 582, 596.)

“There is little flexibility in the procedural imperatives of [section 437c] As a result, section 437c is unforgiving; a failure to comply with any one of its myriad requirements is likely to be fatal to the offending party.” (*Brantley v. Pisaro* (1996) 42 Cal.App.4th 1591, 1607; see *McCarthy v. CB Richard Ellis, Inc.* (2009) 174 Cal.App.4th 106, 117, quoting *Sierra Craft, Inc. v. Magnum Enterprises, Inc.* (1998) 64 Cal.App.4th 1252, 1256 [“it is important that all of the procedural requirements for the granting of such a motion be satisfied before the trial court grants the remedy”]; see *Boyle v. CertainTeed Corp.* (2006) 137 Cal.App.4th 645, 654 [“Code of Civil Procedure section 437c’s provision setting the minimum notice period for the hearing of a summary judgment motion also sets a statewide statutory standard that may not be varied by trial court orders”].)

Subdivision (a) of section 437c of the Code of Civil Procedure “does not contain any language authorizing courts to shorten the [81-day] notice. ‘ ‘ ‘ “It is a well recognized principle of statutory construction that when the Legislature has carefully employed a term in one place and has excluded it in another, it should not be implied where excluded.” ’ ’ ’ [Citation.]” (*McMahon v. Superior Court* (2003) 106 Cal.App.4th 112, 115; see *UAS Management, Inc. v. Mater Misericordiae Hospital* (2008) 169 Cal.App.4th 357, 368 [trial court is without authority to shorten the minimum notice for the motion over the opposing party’s objection].)

The *McMahon* court recognized that, while courts have inherent authority to manage their calendar and to control proceedings before them, it could not see “how a statute precluding courts from shortening the notice period for the hearing of summary judgment motions defeats or materially impairs this authority. Indeed, legislation that places far greater restrictions on a court’s ability to